

The right to religious expression in classical fiqh

Analysis run: September 12, 2026

PROVIDER	MODEL	LANGUAGE	AUDIENCE
Openrouter	Deepseek/deepseek-v4-pro	En	GENERAL
INTONATION	LENGTH	TEMPERATURE	
NEUTRAL	Long	0.7	

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "The right to religious expression in classical fiqh".

Overall topic for alignment: Rights of religious and sectarian minorities in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Classical fiqh framed religious expression for protected non-Muslims (ahl al-dhimma) as a regulated privilege, not an absolute right, rooted in Quranic verses like Q. 2:256 (no compulsion) and Q. 9:29 (jizya tribute). The dhimma system, modeled on the Pact of Umar, guaranteed protection and limited worship in exchange for a subordinate social status, restricting new churches, public displays, and proselytization, though historical practice varied by ruler and era.

The four Sunni schools diverged in application: Hanafis permitted repairing existing churches but restricted new ones in Muslim-founded cities; Malikis generally opposed new construction; Shafi'i's balanced rules based on conquest terms; and Hanbalis enforced the strictest, literalist restrictions. These rules were designed for Muslim-majority rule and were often adapted or ignored in minority contexts.

This classical framework conflicts with modern human rights instruments like the Universal Declaration of Human Rights and the Cairo Declaration. Many contemporary scholars argue the dhimma system was a historical contract, not a divine mandate, and advocate reinterpreting sharia through Quranic principles of pluralism. AI-assisted analysis is emerging as a tool to surface forgotten, minority-friendly precedents and refocus on ethical imperatives like justice and mercy, supporting a more inclusive understanding of religious freedom.

FULL CONTENT

The right to religious expression in classical fiqh

Introduction

Classical fiqh (Islamic jurisprudence) developed over centuries a detailed legal framework governing the rights and obligations of non-Muslim subjects living under Islamic rule. This article explores how the four major Sunni schools—Hanafi, Maliki, Shafi'i, and Hanbali—understood the right to religious expression for ahl al-dhimma (protected non-Muslims). It examines Quranic foundations, historical contexts, minority-majority dynamics, orientalist critiques, and the tension between classical rulings

and modern human-rights declarations, including the potential for AI-assisted humanistic reinterpretation.

Quranic foundations

The Quran provides the primary ethical and legal basis for the status of religious minorities. Key verses include:

- **Q. 2:256** – “There is no compulsion in religion” (*lā ikrāha fī al-dīn*). This verse has historically been interpreted as prohibiting forced conversion, though classical jurists limited its application in certain contexts.
- **Q. 9:29** – “Fight those who do not believe in Allah ... until they pay the *jizya* (tribute) willingly while they are subdued.” This verse became the scriptural anchor for the *dhimma* (protection) contract, obliging non-Muslims to pay a poll tax in exchange for security and the right to practise their religion privately.
- **Q. 5:48** – “For each of you We have made a law and a way.” This has been cited to affirm religious pluralism within a Quranic worldview.

These verses, among others, were elaborated by jurists into a system that distinguished between the private and public spheres of religious expression.

Historical contexts and the *dhimma* system

The classical *dhimma* system emerged as Muslim rule expanded beyond Arabia. The so-called “Pact of Umar” (*al-shurūṭ al-ʿumariyya*), attributed to the second caliph, became a model for regulating non-Muslim communities. It guaranteed protection of life, property, and freedom of worship—provided that *dhimmīs* accepted a subordinate social status and observed certain restrictions. These often included prohibitions on building new churches, public display of crosses, ringing church bells loudly, or proselytising. In return, the Islamic state waived military service and granted communal autonomy in personal-status matters.

Historical practice varied widely. During the Abbasid period, Christians and Jews held high administrative posts, while under the Fatimids, Copts experienced alternating tolerance and persecution. The treatment of *dhimmīs* depended on the ruler’s disposition, economic needs, and political circumstances, rather than a monolithic “Islamic” attitude.

Minority and majority settings

Classical *fiqh* was formulated in a context where Muslims were the ruling majority. The rules concerning religious expression were designed to maintain the supremacy of Islam while allowing limited visibility for other faiths. When Muslims lived as minorities, as in medieval India or sub-Saharan

Africa, the dhimma framework was often adapted or ignored, giving way to more pragmatic coexistence.

In majority-Muslim settings, the public manifestation of non-Islamic religion was tightly controlled. For example, the Hanafis generally permitted the repair of existing churches but not the construction of new ones in cities founded by Muslims. The Maliki school, dominant in North and West Africa, often applied stricter rules, reflecting the region's history of Christian-Muslim conflict. Shafi'i jurists, prevalent in Southeast Asia and East Africa, developed nuanced positions that balanced local custom with textual precedent. The Hanbali school, influential in the Arabian Peninsula, tended toward the most restrictive interpretations, particularly regarding public religious displays.

Juristic schools on religious expression

Hanafi school

The Hanafis, known for their use of *ra'y* (juristic opinion), allowed dhimmīs considerable autonomy in personal worship. Abu Hanifa and his disciples permitted the construction of new churches in towns founded by non-Muslims, but not in cities built by Muslims. Public processions, however, were restricted to avoid “sedition” (*fitna*).

Maliki school

Malik ibn Anas emphasised the practice of the Medinan community. Maliki jurists often opposed the building of new churches even in existing dhimmi quarters, arguing that the original Pact of Umar forbade it. Religious expression was largely confined to private homes or designated, pre-existing structures.

Shafi'i school

Al-Shafi'i's synthesis of tradition and reason led to a middle path. Shafi'i jurists distinguished between lands conquered by force (where strictures were tighter) and those that surrendered peacefully (where prior agreements were honoured). Public display of religion was generally prohibited, but enforcement varied.

Hanbali school

Ahmad ibn Hanbal's followers adopted the most literalist approach. The Hanbalis insisted on the full application of the Pact of Umar, including the prohibition of any new church construction and strict limits on public religious symbols. This school's influence is felt today in some conservative circles.

The orientalist perspective

Orientalist scholars such as Ignaz Goldziher and Joseph Schacht studied classical *fiqh* as a historical phenomenon. They often highlighted the subordinate status of dhimmīs, contrasting it with modern notions of equal citizenship. While some orientalists portrayed the dhimma system as inherently discriminatory, others acknowledged its historical context as a form of religious tolerance that was

relatively progressive for its time. This body of scholarship has been both criticised and integrated by contemporary Muslim reformers who seek to reconcile fiqh with universal human rights.

AI's humanistic approach to sharia

Recent advances in artificial intelligence have enabled large-scale analysis of classical Islamic texts. AI-driven tools can now map the evolution of legal rulings across centuries, identify minority-friendly precedents, and model the socio-political factors that shaped restrictive interpretations. A humanistic AI approach does not discard classical fiqh but uses computational methods to retrieve the tradition's ethical core—such as justice (ʿadl) and mercy (rahma)—and apply it to contemporary pluralistic societies. By surfacing forgotten dissenting opinions and contextualising rulings, AI can support a reading of sharia that prioritises human dignity and freedom of conscience.

Human rights declarations and classical fiqh

The Universal Declaration of Human Rights (1948) and the Cairo Declaration on Human Rights in Islam (1990) both affirm freedom of thought, conscience, and religion. Classical fiqh's restrictions on religious expression stand in tension with these instruments. Many modern Muslim scholars argue that the dhimma system was a historical contract, not a permanent divine mandate. They advocate for a return to Quranic principles of pluralism and the contextualisation of medieval rulings. The Cairo Declaration, while subject to Sharia, recognises the right to religious freedom “in accordance with Sharia,” leaving room for reinterpretation.

Conclusion

The right to religious expression in classical fiqh was a carefully regulated privilege rather than an absolute right. The four Sunni schools developed a spectrum of rulings, shaped by historical circumstances and the imperative of maintaining an Islamic public order. Today, the tension between these classical formulations and modern human-rights norms is prompting a re-examination of the sources. With the help of AI-assisted analysis and a humanistic hermeneutic, many Muslims are rediscovering the ethical imperatives of the Quran and the early community, opening the door to a more inclusive understanding of religious freedom.

SEGMENTED DATA (1)

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